

HOUSE BILL 1190

By Shaw

AN ACT to amend Tennessee Code Annotated, Title 39,
relative to criminal offenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 14, Part 1, is amended by adding the following new section:

(a) It is an offense for a person, with intent to deprive the owner of a motor vehicle, to knowingly obtain or exercise control over the motor vehicle without the owner's effective consent.

(b) It is an offense for a person, who knows that the person does not have the permission of the owner of a motor vehicle, to exercise control over the motor vehicle..

(c)

(1) A violation of subsection (a) is punished as theft under § 39-14-105, after determining value under § 39-11-106.

(2) A violation of subsection (b) is a Class E felony.

SECTION 2. Tennessee Code Annotated, Title 39, Chapter 14, Part 1, is amended by adding the following new section:

(a) It is an offense for a person to possess a firearm that the person knows or reasonably should know has been stolen.

(b) The affirmative defenses in § 39-14-107 may be asserted in a prosecution for a violation of subsection (a).

(c) A violation of this section is a Class A misdemeanor.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.